

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

DOLLAR GENERAL LOGISTICS, LLC, *Complainant*

v.

YANG MING MARINE TRANSPORT CORP., *Respondent*.

DOCKET NO. 25-12

Served: August 12, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SCHEDULING ORDER

On July 1, 2025, the Commission issued a Notice of Filing of Complaint and Assignment (“Notice”) for this proceeding. On July 25, 2025, Respondent Yang Ming Marine Transport Corp. (“Yang Ming”) filed an answer. On August 8, 2025, the parties filed a Joint Status Report (“JSR”) and proposed a schedule that extends discovery six months beyond the 150 days set forth in Rule 141 (the parties propose close of discovery on June 26, 2026). 46 C.F.R § 502.141(g). The parties maintain that this additional six months of discovery is necessary because of the expected volume of data that must be electronically searched, the need to manually review documents before they are produced, and “policy considerations which favor allowing sufficient time for a full development of the evidentiary record...” JSR at 3.

The Initial Decision must issue by the date set by the Commission, July 1, 2026. Notice at 2. While the parties “wish to emphasize that it is not unusual for the deadlines for completion of discovery and/or for the issuance of initial and final decisions to be extended” they also propose waiting until September 5, 2025, to serve initial discovery requests with a substantial completion of document production in response to the initial requests not occurring until January 2, 2026. The parties also propose six weeks after close of discovery before Complainant files its initial brief, and six weeks after that for Respondent to file its opposition brief. Typically, briefing will begin four weeks after the close of discovery. The schedule as proposed by the parties is not reasonable and will substantially delay this proceeding before discovery has even begun. While the volume of data to be searched is likely considerable, electronic recordkeeping and searchable emails should make the process less time-consuming than the ten months proposed. I am mindful of the parties’ need to fully develop the record, so I have extended discovery beyond the 150-days set forth in the rules to accommodate the parties’ anticipated high-volume of production. Motions to further enlarge the discovery period are unlikely to be granted absent a detailed statement of good cause.

Accordingly, the parties are **ORDERED** to follow the following schedule:

August 22, 2025 Serve initial requests for production and interrogatories

September 11, 2025	Parties serve objections and initial responses to initial RFP
September 19, 2025	Parties serve objections and initial responses to interrogatories
September 26, 2025	Parties file Joint Status Report describing status of discovery and discovery issues and whether a status conference is required
October 31, 2025	Substantial completion of document (including ESI) production
October 31, 2025	Begin depositions of fact witnesses
December 5, 2025	Complete depositions of fact witnesses
December 5, 2025	Last day to serve interrogatories, requests for admission, requests for production of documents
December 12, 2025	Joint status report regarding status of discovery including how many expert reports and depositions, if any, are planned
January 5, 2026	Disclosure of initial expert reports, if any
January 26, 2026	Disclosure of rebuttal expert reports, if any
February 20, 2026	Complete expert depositions
February 20, 2026	Complete discovery

Because the parties have indicated that they do not know yet if they will employ experts, or how many of them, a joint status report has been added in December 2025. Depending on the parties' report, the January and February 2026 dates may be adjusted, and a briefing schedule may be set. Complainant has requested an oral hearing in this matter, but whether one is necessary should become clearer after receipt of the December 2025 joint status report. Accordingly, Complainant's request for an oral hearing is **DEFERRED**.

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v.*

Wabash Railroad Co., 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

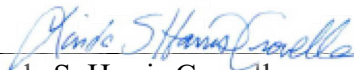
Any filing submitted without page numbers, including on exhibits, may be rejected. The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins, and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;

d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and

e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.



Linda S. Harris Crovella
Administrative Law Judge